

**RESOLUTION NO. \_\_\_\_\_**

**ENTITLED: "A RESOLUTION PERMITTING THE POSSESSION OF OPEN CONTAINERS WITHIN THE DOWNTOWN DISTRICT BOUNDARIES FOR NEW YEARS EVE ON DECEMBER 31, 2023."**

WHEREAS, Section 5.12.110(G)(3) of the Municipal Code permits the possession of open containers of wine and malt beverages within the boundaries of the downtown development district between the hours of 12:00 p.m. and 10:00 p.m. year round;

WHEREAS, under Section 5.12.110(G)(3)(d), the governing body may modify by resolution the restrictions imposed on the periods of time and the boundaries of special areas or districts, beverage distribution, tracking, or event control;

WHEREAS, the city recognizes the value of community engagement and desires to further enhance the celebration of New Year's Eve for all residents and visitors, including those who may prefer not to consume alcoholic beverages;

WHEREAS, there is a desire to promote inclusivity by allowing open containers during the New Year's Eve Ball Drop event, where alcohol is not being served, to encourage community members to actively participate in the festivities;

WHEREAS, Visit Cheyenne requests the possession of open containers of wine and malt beverages within the boundaries of the downtown development district be permitted for the purpose of New Year's Eve on Saturday, December 31, 2023, from 10:00 p.m. until January 1, 2024, at 2:00 a.m.;

WHEREAS, the event organizers will comply with all laws, rules, and regulations to ensure the safety of the community; and

WHEREAS, adherence to the following requirements shall be required for participation by alcohol vendors and consumers when open containers are permitted as designated herein:

1. The only containers authorized for alcoholic beverages in the special district downtown area's public spaces, for the day specified herein, shall be plastic cups. Glass containers are strictly prohibited;
2. No outside alcoholic beverage, wine or malt liquor may be brought into or consumed within the open container area and any violation of this provision shall constitute a violation of the City's open container prohibition and may incur additional civil or criminal liability; and
3. Nothing herein shall be interpreted to authorize the possession of open containers of alcoholic liquor or malt beverages in or on motor vehicles.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, the possession of open containers of wine and malt beverages within the boundaries of the downtown development district shall be permitted for New Year's Eve, during the dates and times designated herein.

PRESENTED, READ, AND ADOPTED this \_\_\_\_\_ day of \_\_\_\_\_,  
2023.

\_\_\_\_\_  
Patrick Collins, Mayor

(SEAL)

ATTEST:

\_\_\_\_\_  
Kristina F. Jones, City Clerk